

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-07

TZ SSE Buyer, LLC, Complainant v. CMA CGM S.A., Respondent

MOTION TO DISMISS THE VERIFIED AMEDED COMPLAINT WITH PREJUDICE

Pursuant to the Presiding Officer's Corrected Order granting the Joint Motion for Approval and Confidential Treatment of Settlement Agreement and Release, dated June 18, 2025, and in accordance with 46 C.F.R. § 502.72(a)(3), Complainant TZ SSE Buyer, LLC ("Complainant") hereby moves to dismiss the above-captioned matter with prejudice pursuant to the terms of the Parties' Confidential Settlement Agreement.

The Parties reached a Confidential Settlement Agreement and Release, which was submitted to the Presiding Officer in support of the Joint Motion for Approval and Confidential Treatment. The Presiding Officer granted that motion on June 18, 2025. Under the terms of the Settlement Agreement, Complainant agreed to dismiss its Verified Amended Complaint with prejudice upon receipt of the agreed settlement funds, which it has now received.

Accordingly, Complainant respectfully requests that the that the Presiding Officer enter an order dismissing the Verified Amended Complaint with prejudice pursuant to 46 C.F.R. § 502.72(a)(3) and the approved Settlement Agreement.

Dated: July 18, 2025

Respectfully submitted,

/s/ Timothy R. Herman
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LLC*

CERTIFICATE OF SERVICE

I certify that on July 18, 2025, a true and correct copy of the foregoing **MOTION TO DISMISS THE VERIFIED AMENDED COMPLAINT WITH PREJUDICE** was served by email on all counsel of record in accordance with 46 CFR Part 502.

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